

Order Sheet  
IN THE LAHORE HIGH COURT  
Multan Bench, Multan  
Judicial Department

**W.P. No. 15132 of 2024**

|                                  |                              |                                                                                 |                      |
|----------------------------------|------------------------------|---------------------------------------------------------------------------------|----------------------|
| Abdul Samad.                     |                              | Vs.                                                                             | District Judge, etc. |
| Sr. No. of order/<br>proceedings | Date of order/<br>Proceeding | Order with signature of Judge, and that of<br>Parties' counsel, where necessary |                      |
| 06.05.2026.                      |                              | <b><u>C.M.Nos. 2920 and 2921 of 2026</u></b>                                    |                      |

Mr. Wazir Ali Khosa, Advocate for applicant-petitioner.  
Mr. Musleh-ud-Din Khan and Malik Muhammad Bakhsh Khakhi, AAGs.  
Rana Ghulam Hussain, Assistant Attorney General for Pakistan.

The applicant, who is petitioner in the main petition, has filed the above mentioned two applications; first under Section 151 CPC for the restoration of the titled Writ Petition, which is claimed to have been dismissed for non-prosecution on 15.10.2025 by this Court and the accompanying application under Section 5 of the Limitation Act, 1908, for condoning the delay in filing the afore-referred application for restoration of titled petition.

2. The claim of the applicant is that the titled Writ Petition was fixed for hearing on 15<sup>th</sup> of October 2025, before this Court, when it was dismissed for non-prosecution. It is claimed that non-appearance of the petitioner before the Court was not intentional rather due to the reason that no message or intimation relating to fixation of case was received by him, resulting in dismissal of the titled Writ Petition. It is further claimed that on coming to know of the said

dismissal, he has filed the instant application for restoration of the main case accompanied with application for condonation of delay in filing the same. Seeks order of this Court allowing these applications and by condoning the delay recalling and setting-aside of the order of dismissal of Writ Petition for non-prosecution and its restoration to original number and status.

3. At the very outset, learned counsel for the applicant/petitioner has been confronted with the fact that neither the titled Writ Petition was fixed for hearing on 15.10.2025 nor the same was dismissed for non-prosecution on the said date, rather the same is still pending and was lastly fixed for hearing on 02.04.2026, when the same was adjourned on the basis of separate written applications/requests for adjournment filed by both the sides and consequently the titled applications, *prima facie* being misconceived and against the record are not maintainable. In response, learned counsel for the applicant/petitioner states that he has been informed that the petition has been dismissed for non-prosecution on the said date. When further confronted, that whether he had himself gone through the order sheet of the Court, the answer is in the negative. However, he states that he firmly believes that the petition has been dismissed for non-prosecution and

insists on the restoration of the same. Perusal of the order sheet shows that on initial date of hearing fixed on 19.11.2024, notices were ordered to be issued for service of other side and interim relief was granted to the petitioner by suspending the decree for recovery of dowry articles subject to deposit of 50% of decretal amount with the learned executing court. On 28.01.2025, application filed by the respondent No.3 to seek permission of this Court to withdraw decretal amount deposited by the Writ Petitioner in executing court in compliance of order of this Court was filed, which was allowed subject to due verification and fulfilment of codal formalities. Thereafter, the main case was listed for hearing on 2<sup>nd</sup> of April, 2026, when the same was adjourned due to requests for adjournment made on behalf of both the parties. The record does not show that the case was fixed for hearing on 15<sup>th</sup> of October, 2025, when the applicant claims that the same was dismissed for non-prosecution, which claim is not only against the record but is also against the natural course of events as the counsel for the applicant/petitioner had himself previously filed request for adjournment of case on 02.04.2026, which was after the date of alleged date of dismissal of main petition for non-prosecution and the said request for adjournment had been allowed.

4. In view of what has been discussed above, both of these applications are misconceived as the main case was never dismissed for non-prosecution and so there was no need to file an application for restoration of the same. It is pertinent to mention here that frivolous, misconceived, ill-advised and negligently filed applications are deprecated by courts of law as the same have adverse impact on speedy dispensation of justice, result in wastage of time and energy of the court and cause hardship to genuine litigants. Reliance in this regard may be placed on judgments titled as Abdul Hameed and another versus Province of Sindh through Secretary Home Department and 8 others (PLD 2019 Sindh 168), Mrs. Azra Shabbir versus Mrs. Rehana Khatoon (2010 CLC 1578 Karachi) and Mst. Manzoor Begum versus M.B.R. (1994 MLD 1179 Lahore).

5. In any case before filing any application, the applicant and his counsel were required to consult the record of the case and go through the order sheet of the case, which had not been done, hence, their conduct has been negligent in pursuing their remedy before this Court. It is pertinent to mention here that the law favours the vigilant and not the indolent and litigants that negligently pursue remedies before the court. Where a right was required to be asserted, it had to be done vigilantly and no indulgence could be

shown to indolent and negligent litigant. Reliance is placed on Abid Hussain versus Secretary, Ministry of Defence, Government of Pakistan through Chief of Air Staff, Islamabad (2021 SCMR 645), Nazakat Ali versus WAPDA through Manager and others (2004 SCMR 145) and Province of Sindh through Land Acquisition Officer versus Abdul Tawab and others (PLD 2026 SC 113). The afore-referred principle although ordinarily relates to questions of limitation but in addition to above can also be made applicable to cases where matters are pursued in courts in casual manner instead of with vigilance. In the present case, the approach of the applicant appears to be very casual, based on laxity and court has been approached without even bothering to go through the record of the case and both applications have been filed on apprehension and hearsay information which had no basis. Needless to mention that applications were filed due to lack of information and understanding of status of the case whereas application for restoration and condonation of delay in filing the said application would lie only where the case had actually been dismissed for non-prosecution, which was a condition precedent for availing the remedy of restoration of same, which situation did not arise in the present case.

6. In view of what has been discussed above, as the main case is still pending and was never

dismissed in default, therefore, both the afore-referred applications being misconceived, against the record, having been filed merely on apprehensions and misinformation are **dismissed**.

**(Muzamil Akhtar Shabir)**  
**Judge**

*Zeeshan Khan*

**APPROVED FOR REPORTING**

**Judge**